

IN THE [COURT IN WHICH THE CHARGE IS PENDING – STATE, SUPERIOR, MAGISTRATE, PROBATE OR MUNICIPAL COURT; CONFIRM FROM YOUR OWN COURT RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN COURT RECORD] COUNTY, STATE OF GEORGIA

STATE OF GEORGIA,
Plaintiff,

v.

JOHN DOE,
Defendant.

DOCKET NO.: [TO BE CONFIRMED]

PETITION TO RESTRICT ACCESS TO CRIMINAL HISTORY RECORD INFORMATION FOR A CHARGE DEAD DOCKETED FOR MORE THAN 12 MONTHS, PURSUANT TO O.C.G.A. § 35-3-37(j)(3)

STATUTORY AUTHORITY

O.C.G.A. § 35-3-37(j)(3) – Where an individual's charged offence has remained on the dead docket for more than 12 months, the individual may petition the court in which the charged offence is pending to restrict access to criminal history record information for that charged offence. The court gives due consideration to the reason the offence was dead docketed, and shall not grant the petition if an active warrant is pending for the individual.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the court of the State of Georgia in Sample County (synthetic sample venue) in which the charged offence is pending, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Sample County (synthetic sample venue), State of Georgia.

II. PARTIES

3. Defendant is JOHN DOE, whose address is 1000 Sample Street, Atlanta, GA 30303.

4. Plaintiff is the State of Georgia.

III. FACTS AND CASE HISTORY

5. On or about 07/18/2022, Defendant was charged with Charge stated in the participant's own pending court record (synthetic sample charge) by Sample City Police Department (synthetic).

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. The matter was resolved with the following disposition: Not resolved; charge placed on the dead docket and still pending (synthetic sample disposition). [DISPOSITION DATE TO BE CONFIRMED]

8. The offense grade was: Misdemeanour (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Defendant may be eligible for record restriction on the following basis: record restriction under O.C.G.A. § 35-3-37(j)(3) (Defendant states the charge has remained on

the dead docket for more than 12 months).

10. Defendant states the charge was placed on the dead docket on a date shown on Defendant's own docket, and that more than 12 months have passed since that date (synthetic sample answer).

11. Defendant states the case remains pending and has not been dismissed (synthetic sample answer).

12. Defendant states that no active warrant is pending for Defendant in any jurisdiction (synthetic sample answer).

13. Defendant states what Defendant understands about why the case was placed on the dead docket, as far as Defendant knows (synthetic sample answer).

14. In Defendant's own words: the pending charge on Defendant's record has been a barrier to employment (synthetic sample participant narrative).

IMPORTANT: Defendant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Defendant respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the record restriction of the criminal history record information for the dead docketed charge in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to restrict access to all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, state that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

JOHN DOE
1000 Sample Street, Atlanta, GA 30303

Date: _____

[NOTE: Date of birth and Social Security Number should be added by defendant if required by the applicable form or local court rules.]

VII. CERTIFICATE OF SERVICE

Notice to the prosecuting attorney. Service by certified mail, e-filing or hand delivery, certified in a certificate of service.

I certify that on _____, I served a copy of this Petition upon the prosecuting attorney at the following address:

[PROSECUTING ATTORNEY SERVICE ADDRESS – CONFIRM WITH THE CLERK OF THE COURT THAT HANDLED THIS CASE]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

JOHN DOE

Date: _____

PROPOSED ORDER

IN THE [COURT IN WHICH THE CHARGE IS PENDING – STATE, SUPERIOR, MAGISTRATE, PROBATE OR MUNICIPAL COURT; CONFIRM FROM YOUR OWN COURT RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN COURT RECORD] COUNTY, STATE OF GEORGIA

STATE OF GEORGIA v. JOHN DOE

DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Georgia Crime Information Center of the Georgia Bureau of Investigation, the clerk of this Court, and the county and municipal law enforcement, jail and detention center records custodians for this matter, Sample City Police Department (synthetic), and all other criminal justice agencies with records pertaining to this matter are hereby directed to restrict access to all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Certificate of Service
- Exhibit A – Copy of the final disposition obtained by the participant from the clerk
- [PROPOSED] ORDER (for the court's signature)

Prepared by defendant using LegalEase RCAP. This is not an official court form.